

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE ENROLLED ACT No. 1062

AN ACT to amend the Indiana Code concerning natural and cultural resources.

Be it enacted by the General Assembly of the State of Indiana:

SECTION 1. IC 14-8-2-222 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 222. "Public freshwater lake", for purposes of **IC 14-15-3 and IC 14-26-2**, has the meaning set forth in IC 14-26-2-3.

SECTION 2. IC 14-8-2-301.1 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 301.1. "Wake boarding" means to:**

- (1) use a short board with or without foot bindings on which a rider is towed by a motorboat across a wake; or**
- (2) operate a motorboat that creates a wake and that tows or is intended to tow a person who uses a short board with or without foot bindings on which the person is towed by the motorboat across the motorboat's wake.**

SECTION 3. IC 14-8-2-301.4 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 301.4. "Wake surfing" means to:**

- (1) surf a wake, regardless of whether the person is being pulled by a tow rope attached to the motorboat that is producing the wake; or**
- (2) operate a motorboat that creates a wake that is or is**

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intended to be surfed by another person.

SECTION 4. IC 14-15-3-8.1 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 8.1. An individual shall not operate a motorboat on a public freshwater lake for the purpose of wake boarding or wake surfing during the period between sunset and sunrise.**

SECTION 5. IC 14-15-3-10 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 10. **(a)** Subject to section 11 of this chapter, a person may not operate a motorboat upon a small lake at a speed greater than ten (10) miles per hour.

(b) An individual may not operate a motorboat upon a small lake while engaging in wake boarding or wake surfing unless it is during the time and day of a speed exemption granted for the small lake under section 11 of this chapter.

SECTION 6. IC 14-15-3-11.1 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 11.1. A rule adopted under section 11 of this chapter before July 1, 2026, applies to wake boarding and wake surfing.**

SECTION 7. IC 14-15-3-31, AS AMENDED BY P.L.195-2014, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 31. (a) A person who violates section 2, 3, 5, 7, 8, **8.1**, 9, 10, 14, 15, 16, 17, 20, 22, 23, 24, 25, 26, 27, 28, 29, or 30 of this chapter commits a Class C infraction.

(b) A person who knowingly or intentionally violates section 6 of this chapter commits a Class C misdemeanor.



Speaker of the House of Representatives

President of the Senate

President Pro Tempore

Governor of the State of Indiana

Date: _____ Time: _____

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